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Bay Area lawmakers' bills to combat ICE head to Newsom's desk

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Several state bills spurred by Silicon Valley lawmakers to keep federal immigration agents accountable and uphold rights for detainees are headed to the governor's desk.

U.S. Immigration and Customs Enforcement (ICE) detention facilities have been rife with alleged human rights violations, with reports of inhumane living conditions, sexual abuse, unsanitary food and inadequate medical care. In response, state lawmakers have stepped up to protect immigrant rights with bills that would tax companies operating detention centers, prevent ICE contractors from receiving state grants or loans and allow the federal agency to be sued for monetary damages and First Amendment rights violations.

Gov. Gavin Newsom has until Sept. 30 to approve or veto the bills, which have already been approved by the state Legislature.

Reining in detention centers

Assemblymembers Alex Lee and Ash Kalra co-authored Assembly Bill 1633, which would tax private companies operating immigration detention centers. Lee represents North San Jose, Milpitas, Fremont, Newark and Sunol, while Kalra represents East San Jose and South County. The bill is led by San Francisco Assemblymember Matt Haney.

If signed by Newsom, private detention center operators would be taxed 25% starting July 1, 2028. The money would be used to fund immigration services.

"ICE and its corporate profiteers are abducting tens of thousands of innocent people and warehousing them in detention camps," Lee told San José Spotlight.

Two of the largest private prison companies, CoreCivic and The GeoGroup, are the major operators running ICE detention centers. CoreCivic runs two large ICE detentions in California — the nearly 2,000-bed Otay Mesa Detention Center in San Diego County and the 2,560-bed California City Detention Facility in Kern County.

The GeoGroup runs five ICE detention facilities in the state— 1,940 bed Adelanto ICE Processing Center in San Bernardino County, the 750-bed Desert View Annex in San Bernardino County (run alongside the Adelanto facility), the 400-bed Mesa Verde ICE Processing Center in Bakersfield, the 700-bed Central Valley Annex in Kern County and the 700-bed Golden State Annex in Kern County.

July 18, 2026

Santa Clara County immigrant network evolved into powerhouse

July 13, 2026

Work at South County ICE facility temporarily paused

July 11, 2025

Santa Clara County immigrants are self-deporting

The companies' profits have grown as President Donald Trump upped federal immigration enforcement and deportations. In 2025, CoreCivic racked in $2.2 billion in revenue and The GeoGroup made $2.6 billion.

CoreCivic sold Otay Mesa Detention Center and the California City Detention Facility to the federal government on July 2, according to a recent filing with the U.S. Securities and Exchange Commission, as reported by AP, with the federal government paying more than $739 million for Otay Mesa and more than $732 million for City Detention.

More than 50 people have died in ICE detention centers during Trump's second administration, the highest level of deaths in at least a decade. Senate Bill 942 — also known as the Civil Detainee Bill of Rights Act — would give immigrants held in detention rights to humane care, safe living conditions and healthy food. It is co-authored by Kalra and state Sen. Dave Cortese.

In addition, Senate Bill 1367, led by state Sen. Sabrina Cervantes from Riverside, would prevent a city or county from approving land use for the building of a detention center or converting a current building to an ICE facility.

"I'm glad we were able to pass many pieces of important legislation to hold ICE accountable in California and protect vulnerable communities," Kalra told San José Spotlight. "My committee worked on SB 942, which is the nation's first Detainee Bill of Rights, and will enforce much-needed safety and dignity standards for those held in immigration detention."

Keeping agents in check

Multiple bills awaiting Newsom's signature aim to address how ICE agents have largely acted with impunity during raids and arrests.

Assembly Bill 2760, led by Lee and co-authored by Kalra, would ban federal immigration agents, as well as local and state officers, from wearing electric shock gloves — and police departments from purchasing them. Lawmakers passed the last-minute bill in response to the Trump administration's announcement last month to spend up to $20 million on the devices.

Senate Bill 873, co-authored by Kalra, aims to prevent arrests by ICE at courthouses. Senate Bill 747, the No Kings Act, led by state Sen. Scott Wiener of San Francisco, will allow people to sue ICE for constitutional violations. Assembly Bill 1806, spearheaded by Southern California Assemblymember Jesse Gabriel, would require the state attorney general to investigate killings of unarmed residents by immigration agents.

Since 2025, federal immigration officers have shot at least 23 people and killed six during immigration enforcement operations, including three U.S. citizens.

While mass enforcement actions like the federal deployment in Los Angeles and Minneapolis, Minnesota haven't occurred in Santa Clara County, the region is one of the most impacted areas for targeted ICE operations, according to the Services, Immigrant Rights and Education Network (SIREN). The organization is part of the Rapid Response Network of Santa Clara County, a group of volunteers that documents ICE activity, sends alerts to residents and provides free emergency legal support for immigrants.

Since the start of 2025 to June 2026, 232 county residents have been detained, according to the network. Fears of ICE have kept San Jose students from attending class and slowed foot traffic at Latino-owned businesses. Some undocumented residents have chosen to self-deport.

Lee also spearheaded Assembly Bill 2465 to ensure ICE contractors such as tech giant Palantir Technologies, which provides the government with data-mining software to track immigrants, do not get government grants or loans. ICE is paying $30 million through 2027 to use Palantir's platform.

In the second quarter of 2026, Palantir made $809 million from government contracts — 90% more than what it brought in a year ago.

The extent to which California would benefit from the bill is unknown, as the state does not track how many tax credits it gives to contractors.

"We have clients and community members who have endured the terrible conditions in these facilities," Huy Tran, executive director of SIREN, told San José Spotlight. "This industry is built on heartbreak and AB 1633 and AB 2465 makes it clear that California will not allow immoral profiteering to go unchecked."

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